

IN THE HIGH COURT OF JUDICATURE AT PATNA
CRIMINAL MISCELLANEOUS No.48531 of 2026

Arising Out of PS. Case No.-922 Year-2023 Thana- DIGHA District- Patna

Indrajeet Rai @ Kalyug Rai S/O Jalandhar Rai Resident of Ghurdaur Road,
Gali No.- 3, P.S- Digha, Dist.- Patna.

... .. Petitioner/s

Versus

The State of Bihar

... .. Opposite Party/s

Appearance :

For the Petitioner/s : Mr. Dineshwar Pandey, Adv.

For the Opposite Party/s : Mr. Mukesh Kumar Singh, APP

CORAM: HONOURABLE MR. JUSTICE SATYAVRAT VERMA
ORAL ORDER

2 11-08-2026 1. Heard learned counsel for the petitioner and
learned A.P.P. for the State.

2. The petitioner apprehends his arrest in a case
registered for the offences punishable under Sections 307, 323,
337, 338, 341, 379, 354, 504, 506 and 34 of the IPC.

3. Learned counsel for the petitioner submits that
petitioner is a person with clean antecedent and the informant
alleges that driver (Lakshman) was a tenant in the house of
petitioner, further on 27.11.2023 at 11:30 AM, petitioner,
Mahesh, Dhela and Gajendra along with 3-4 unknown accused
in an intoxicated conditions started assaulting Lakshman,
accordingly, informant, her husband (Sitaram) and Amresh
intervened to save him, when petitioner, Dhela and Gajendra
assaulted her husband and Amresh (Devar) by brick causing



injury on their head and they fell unconscious, further Mahesh with axe gave orders to assault, hence Gajendra and Devan dashed the informant on the ground and assaulted by leg on her face, mouth and stomach and acted inappropriately and Mahesh snatched her chain.

4. Learned counsel for the petitioner submits that from perusal of the allegations as alleged in the FIR, it would manifest that informant alleges that her driver was a tenant in the house of the petitioner and the petitioner along with other accused persons assaulted him. It is submitted that there was a dispute relating to rent and when petitioner asked for his rent, the driver of the informant abused, on account of which an altercation took place in which both side assaulted each other. It is further submitted that no doubt husband of the informant suffered grievous injury on head, but then allegation of assault is not specific rather the informant alleges that her husband was assaulted by petitioner, Dhela and Gajendra. It is also submitted that the parties have compromised as would manifest from Annexure P/2.

5. Learned A.P.P. for the State opposes the prayer for anticipatory bail of the petitioner and submits that no doubt allegation of assaulting the husband of the informant is not



specific, but then he suffered grievous injury on head i.e. vital part of the body and petitioner is also alleged to have assaulted him along with Dhela and Gajendra. It is next submitted that though a submission has been made based on Annexure 2 that parties have compromised, but then from perusal of the FIR, it would manifest that the name of the informant is Vimli Devi whereas in the compromise application the name of informant is recorded as Vimal Devi which casts an aspersion that as to whether informant has signed the compromise petitioner or not, on which the learned counsel appearing on behalf of the petitioner asserts and submits that the compromise petition has been signed by the informant and there may be some spelling mistake in Hindi.

6. After hearing the learned counsel for the parties and taking into consideration the fact that it has been asserted that parties have compromised, as such, the petitioner above-named, in the event of his arrest or surrender within a period of six weeks from today, be released on **provisional** anticipatory bail on furnishing bail bonds of Rs. 10,000/- (Rupees Ten Thousand) with two sureties of the like amount each to the satisfaction of the learned trial court where the case is pending/successor court in connection with Digha P.S. Case No.



922 of 2023 subject to the conditions as laid down under Section 482 (2) of the BNSS.

7. It is made clear that thereafter the learned Trial Court shall issue notice to the informant to verify that as to whether the compromise petition dated 18.05.2026 is genuine or not in the event if the informant does not certify the compromise petition dated 18.05.2026 in that event the provisional anticipatory bail bonds shall not be confirmed, but if the informant certifies the compromise petition dated 18.05.2026, that the same has been signed by her, in that event, the learned Trial Court shall forthwith confirm the provisional anticipatory bail bonds of the petitioner.

8. Accordingly, application stands allowed.

(Satyavrat Verma, J)

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